

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUBT068146: ZAYA YOUNAN, et al. vs ROYAL BUSINESS BANK

07/01/2026 in Department 43

Order to Show Cause re Issuance of a Preliminary Injunction

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Order to Show Cause re Issuance of a Preliminary Injunction

Tentative Ruling: Plaintiffs' request for a Preliminary Injunction is DENIED as explained below.

Request for Judicial Notice

Defendant requests the Court take judicial notice of the following: Request for Judgment, Declaration of Barry Smith re Notice of Default in Compliance with Stipulation for Entry of Judgment and Declaration of Robert Ross re Notice of Default in Compliance with Stipulation for Entry of Judgment in LASC case Royal Business Bank vs Zaya Younan, et al. Case No. 24VECV03090. These documents were not attached to the Request for Judicial Notice.

The Court could not locate a document titled *Request for Judgment*, however, the Court did find a judgment attached as an Exhibit to the opposing brief, with a caption indicating it was filed in Los Angeles Superior Court Case Royal Business Bank vs Zaya Younan, et al., Case Number 24VECV03090. The Court takes judicial notice of the judgment.

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The Court found a document titled *Declaration of Barry Smith re Notice of Default in Compliance with Stipulation for Entry of Judgment* with a caption indicating it was filed in Los Angeles Superior Court Case Royal Business Bank vs Zaya Younan, et al., Case Number 24VECV03090 attached as an Exhibit to the opposing brief. The Court takes judicial notice of the declaration, but not the truth of the matters stated therein.

The Court found a document titled *Declaration of Robert Ross re Notice of Default in Compliance with Stipulation for Entry of Judgment* with a caption indicating it was filed in Los Angeles Superior Court Case Royal Business Bank vs Zaya Younan, et al., Case Number 24VECV03090 attached as an Exhibit to the opposing brief. The Court takes judicial notice of the declaration, but not the truth of the matters stated therein.

DISCUSSION

I. INTRODUCTION

Plaintiffs herein seek a preliminary injunction enjoining Defendant Royal Business Bank (“RBB”) from proceeding with the non-judicial foreclosure sale of the real property located at 2400 White Stallion Road, Thousand Oaks, California (the “Subject Property”), currently scheduled for July 23, 2026. The request is brought in connection with Plaintiffs’ causes of action for declaratory relief challenging RBB’s authority to foreclose under a May 28, 2025, Stipulated Judgment entered in Los Angeles Superior Court Case No. 24VECV03740 and under the March 2023 Deed of Trust recorded against the Subject Property.

The Court has reviewed Plaintiffs’ moving papers, Defendant’s opposition with supporting declarations and exhibits, and the declarations of Zaya Younan and Nicholas Lauber. All evidence was received for purposes of this hearing. The sale date has been continued to July 23, 2026, by oral stipulation of the parties on the record in court on June 25, 2026, providing the Court with sufficient time to prepare for and conduct this hearing. The parties agreed to forego further briefing and permit the Court to prepare for this hearing based on the submissions filed in relation to the ex parte application for a temporary restraining order on June 25, 2026. The Court will entertain and consider oral argument at the hearing.

II. LEGAL STANDARD

A preliminary injunction may issue under Code of Civil Procedure section 526(a) when the plaintiff shows (1) a reasonable probability of prevailing on the merits and (2) that the balance of hardships weighs in the plaintiff’s favor, or that the plaintiff will suffer irreparable harm for which money damages are inadequate. *Monterossa v. Superior Court* (2015) 237 Cal.App.4th 747, 754; *Robbins v. Superior Court* (1985) 38 Cal.3d 199, 206–207. These factors are evaluated on a sliding

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scale. The granting of a preliminary injunction does not determine the ultimate merits of the case. *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.

III. APPLICATION

A. Irreparable Harm

Plaintiffs have made a showing of irreparable harm. The loss of one's primary residence constitutes irreparable injury under California law. Code Civ. Proc. § 3387; *Jessen v. Keystone Savings & Loan Assn.* (1983) 142 Cal.App.3d 454, 457. Real property is unique, and money damages are generally inadequate. *Fonteno v. Wells Fargo Bank, N.A.* (2014) 228 Cal.App.4th 1358, 1380. This factor weighs in Plaintiffs' favor.

B. Likelihood of Success on the Merits

Plaintiffs do not demonstrate a reasonable probability of prevailing on their declaratory relief claims.

The Subject Property is currently encumbered by a valid Deed of Trust executed in March 2023 by both Zaya Younan and Sherry Younan as co-trustees. The encumbrance was given as additional collateral for a loan that was in default. The May 2025 Stipulated Judgment signed by Zaya Younan was a separate agreement that provided Zaya Younan with conditional forbearance on foreclosure of the Subject Property in exchange for a reduced settlement amount, a payment schedule, the sale of the Arlington, Illinois property by June 1, 2026, and other conditions, including a non-interference provision.

The Stipulated Judgment's terms were expressly conditional. Defendant has demonstrated three separate defaults by Zaya Younan this year: (1) failure to make the full May 1, 2026 installment payment of \$325,000 (\$75,000 was tendered but rejected; a 10-day cure notice was sent; it was not timely cured); (2) failure to sell the Arlington property by the June 1, 2026, deadline (expressly defined as creating default in the Stipulation); and (3) violation of the non-interference covenant by filing a lawsuit in Los Angeles Superior Court which was served on June 19, 2026 by entities controlled by Zaya Younan against RBB and its counsel. These defaults ended RBB's duty to pause the foreclosure and restored its right to enforce the pre-existing Deed of Trust.

Plaintiffs' argument that Sherry Younan and the Trust are not bound by the Stipulated Judgment because they did not sign it is unpersuasive. The Deed of Trust lien was created independently in 2023 and does not depend on the later settlement agreement for its enforceability. The settlement provided benefits to Zaya Younan; but his defaults on the agreement released RBB from its promise not to foreclose. Sherry Younan and the Trust benefited from the agreement between Zaya Younan and RBB, but that agreement did not result in the mortgage no longer being in default.

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The agreement simply resulted in a temporary pause (forbearance agreement) to resolve a multitude of issues. The fact that Sherry Younan was not a party to that agreement does not mean the foreclosure is no longer valid. Zaya Younan's default on the agreement permits RBB to resume action on its original right to foreclose. The agreement did not create a new right to foreclose; it only delayed RBB from taking action on its pre-existing right.

The reference in the Stipulated Judgment to 2300 White Stallion Road rather than 2400 is a mutual scrivener's error acknowledged by both sides. All official Trustee's Sale notices correctly identify the Subject Property at 2400 White Stallion Road and were properly served on both trustees. The parties' intent and conduct over nearly a year confirm that the forbearance and enforcement rights relate to the family home at 2400. No formal written release or waiver of the Deed of Trust was executed, and the Deed itself contains a "No Waiver by Lender" clause requiring a signed writing.

On the current record, Plaintiffs have not shown a reasonable probability of success on the merits of their declaratory relief claims.

C. Balance of Hardships and Public Interest

The balance of hardships and public interest strongly favor Defendant. RBB has already extended substantial forbearance, including multiple continuances of the sale and agreement to a significantly reduced settlement amount. They have once again voluntarily postponed the sale date to July 23, 2026, this time in light of this motion. Injunctive relief would result in unwarranted delay on a secured lender after documented post-settlement defaults on the forbearance agreement by Zaya Younan.

Public policy strongly favors the enforcement of contracts and settlement agreements. *Kaufman v. Goldman* (2011) 195 Cal.App.4th 734, 745. Allowing further delay of the non-judicial foreclosure after multiple clear contractual defaults would undermine the finality of the Stipulated Judgment and the statutory foreclosure process. Plaintiffs have not shown that the balance of equities or public interest justifies the extraordinary remedy of a preliminary injunction.

IV. CONCLUSION

Plaintiffs' motion for a preliminary injunction is **DENIED**.

The trustee's sale on July 23, 2026, may proceed as scheduled (absent other relief being obtained).

The Case Management Conference currently scheduled for November 5, 2026, at 8:30 a.m. in Courtroom 43 remains on calendar.

Defendant is ordered to serve notice of the Court's ruling.